

VAL NAPOLEON and HADLEY FRIEDLAND, INDIGENOUS LEGAL TRADITIONS: ROOTS TO RENAISSANCE

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Again, there is a great diversity of Indigenous groups. While all Indigenous societies logically must have had some way of addressing what we characterize as criminal law matters, each society would have had different ways of organizing and articulating this category of law within their legal order. As mentioned previously, because it is impossible adequately to capture this diversity in the space of this chapter, we will study one example of such a characterization, which we will follow through the different eras of thinking about Indigenous laws: the *wetiko*, a concept that described people who are harmful or destructive to others in socially prohibited ways in Cree and Anishinabek societies.

Like analogous criminal law concepts, the *wetiko* legal concept or category grappled with the “ordinariness of human monstrosity.” It triggered particular obligations, legitimate collective reasoning processes, and legal principles for determining an appropriate response to human violence and harm in particular circumstances. These principles were balanced and implemented differently based on specific facts in each circumstance, but the overriding goals were preventing harm, protecting the vulnerable, and ensuring group safety. While we are not suggesting that these goals were accomplished with any less heartache or any more efficacy than in any other analogous “criminal” area of law, there is enough evidence, even from the written records of early Europeans, to support the logical inference that they worked well enough in their historic political and social context.

Just like people today theorize and philosophize about the causes of crime, and struggle to understand criminal behavior, Cree and Anishinabek people had theories about the causes of *wetiko* behavior. These theories were often, but not always, spiritual in nature. This made sense in the context of decentralized societies where there was no brutal history of oppression necessitating the wrenching of church from state, and where law was not associated with centralized, formal, and hierarchal processes, but with people, as legal agents, make necessary decisions and conducting themselves in principled and predictable ways. In this non-hierarchal context, respected spiritual leaders and healers often contributed meaningfully to the collaborative reasoning through resolution of difficult issues.

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The *wetiko* legal category and analogous categories in other Indigenous legal traditions were, like criminal law today, necessarily a core aspect of the wider legal orders they were part of because they addressed the unavoidable and critical issue of human vulnerability and violence. For a very long time, these laws served as legitimate responses and processes, and were a relatively

effective means to protect the vulnerable, prevent harm, and ensure group safety. This contributed in an essential way to an overall functioning social order within Indigenous societies, just as it does in every society.

Legal traditions encompass far more than just rules for conduct. They include formal laws and informal laws, worldviews, aspirations, pedagogies, processes, and practices. The impact of the disintegration of so many aspects of Indigenous legal traditions, consequent to colonialism, would be difficult to overestimate. From our vantage point in history, ensconced in our familiar worlds where our state legal actors, laws, and legal processes can be relied on, at least to do what they usually do, and accomplish what they usually aim to, such disintegration of the social ordering we take for granted is hard to conceive. We may question, criticize, or dislike our state laws, but there are no powerful outsiders that are so blind to their existence and necessity that they use force to sweep them away as superstitious nonsense, or even criminalize them, as was done with Indigenous laws. One can only imagine the disorientation, chaos, and fear that would result from the gradual but relentless loss of all our familiar normative signposts, from the most mundane to the most significant. For the purposes of this chapter, we focus on the impact of the state criminalizing the categories of law within Indigenous legal traditions that are analogous to criminal law and we continue with the example of the *wetiko* legal category.

A common issue facing almost all Indigenous laws of this nature is that legal responses to human violence and vulnerability are the most likely to require, not always, but certainly in the most acute or extreme circumstances, some recourse to force. Yet laws that require or authorize the use of force were exactly the ones first criminalized by colonial states, which monopolized the legitimate use of coercive force as part of the "civilizing" project. In this way, states actively delegitimized and belittled Indigenous people's categorization and responses to violence, harm, and group safety needs within their own societies. In Canada, within the nineteenth and early twentieth centuries, there are numerous documented court cases that led to the execution or imprisonment of Indigenous legal decision-makers who had implemented a legitimate collective legal decision to execute someone in the *wetiko* legal category, in cases where they had determined that there were no other means left to prevent harm or keep the rest of the group safe.

The fact that there were other principled and preferred responses to someone in the *wetiko* legal category, such as healing, supervision, and temporary or permanent separation, which were required to be employed first, and which usually worked effectively to resolve most cases, was rarely considered by state legal decision-makers. Although in many of these cases, Cree or Anishinabek people extensively described their collective decision-making processes and principled reasoning leading to these tragic last resort decisions, these explanations were dismissed. Indigenous peoples were often described as "child-like and incapable of reason. Their legal decisions to employ force were reduced to, at best, an "honestly held belief," but even this

was weighted down by demeaning notions that Indigenous individuals or groups were only acting under the pernicious influence of “pagan” or “superstitious belief” or “a form of insanity to which the whole tribe is subjected,” which had to be eradicated for their own good. The unfortunate legal actors tasked with implementing the incapacitation of a dangerous *wetiko*, who were respected and trusted leaders within Indigenous groups, were not only executed or imprisoned, but also held up as examples of irrational barbarism, which no longer had any place within the state legal order. Similar examples to the Canadian *wetiko* cases abound.

HONOURING THE TRUTH, RECONCILING FOR THE FUTURE

Summary of the Final Report of the Truth and Reconciliation Commission of Canada (2015)

Educating lawyers

The criminal prosecution of abusers in residential schools and the subsequent civil law-suits were a difficult experience for Survivors. The courtroom experience was made worse by the fact that many lawyers did not have adequate cultural, historical, or psychological knowledge to deal with the painful memories that the Survivors were forced to reveal. The lack of sensitivity that lawyers often demonstrated in dealing with residential school Survivors resulted, in some cases, in the Survivors’ not receiving appropriate legal service. These experiences prove the need for lawyers to develop a greater understanding of Aboriginal history and culture as well as the multi-faceted legacy of residential schools.

Calls to Action

27) We call upon the Federation of Law Societies of Canada to ensure that lawyers receive appropriate cultural competency training, which includes the history and legacy of residential schools, the United Nations Declaration on the Rights of Indigenous Peoples, Treaties and Aboriginal rights, Indigenous law, and Aboriginal — Crown relations. This will require skills-based training in intercultural competency, conflict resolution, human rights, and anti-racism.

28) We call upon law schools in Canada to require all law students to take a course in Aboriginal people and the law, which includes the history and legacy of residential schools, the United Nations Declaration on the Rights of Indigenous Peoples, Treaties and Aboriginal rights, Indigenous law, and Aboriginal — Crown relations. This will require skills-based training in intercultural competency, conflict resolution, human rights, and anti-racism.